

LAW & MOTION CALENDAR
TENTATIVE RULINGS

June 12, 2026

9:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
1	West vs. Metal Art of California, Inc. 2024-01381223	Plaintiff’s Motion for Approval of Class Settlement The Court has reviewed the supplemental briefing filed in response to the previous minute order. The motion for preliminary approval of class action settlement will be GRANTED contingent upon submission of a revised notice that deletes the description of the mediator as “experienced, neutral” in section 2. Because the notice is a court-ordered communication, this description could be considered an official endorsement of the mediator by the Court. Upon submission of a revised notice, the Court will preliminarily approve the settlement, as amended by the parties’ addendum. The motion for final approval shall be heard on November 5, 2026 at 9:00 a.m. in Department CX101. Moving papers are due 16 court days before the hearing. Please submit a revised proposed order that conforms to the foregoing, including the date of the final approval hearing, and updates all dates that are calculated in reference to the date preliminary approval is granted.

2	Center for Natural Lands Management vs. City of Dana Point 2021-01219668	Cross- Defendant’s Motion to Dissolve or in the Alternative to Modify the Preliminary Injunction The Center for Natural Lands Management’s (“CNLM”) motion to dissolve or modify the preliminary injunction previously entered in this matter is GRANTED. The preliminary injunction is modified to provide that operating hours for the nature trail in the Dana Point Preserve (“Trail”) shall correspond to the interim hours set forth in section 4 of the California Coastal Commission’s Consent Cease and Desist Order CCC-26-CD-02 (“Consent Order,” CNLM RJN, Ex. K). CNLM shall prepare and circulate a revised preliminary injunction in accordance with this ruling. <u>EVIDENTIARY MATTERS</u> CNLM’s request for judicial notice of Exhibits A-O is granted, both for the exhibits’ existence and insofar as they set forth the positions of the government agencies who authored them, but not for the truth of the matters set forth therein. (See <i>American Indian Model Schools v. Oakland Unified School Dist.</i> (2014) 227 Cal.App.4th 258, 293.) The City of Dana Point’s request for judicial notice of Exhibits 1-3 is granted. CNLM’s objections to the declaration of A. Patrick Muñoz are overruled. <u>GROUND S FOR RULING</u> I. <u>Brief Background</u> This is one of three cases arising from a dispute between CNLM and the City about the operating hours for the Trail. CNLM owns and operates the Dana Point Preserve and is responsible for managing the Trail. Prior to the COVID-19 pandemic, the Trail was open from 7 a.m. until dusk, seven days a week. The Trail was shut down for a period of time after the pandemic began. CNLM eventually reopened it with reduced hours of operation. The City believed the Trail should be open for its full pre-pandemic hours and began issuing administrative citations against CNLM. CNLM responded by filing this case against the City. The City cross-claimed against CNLM. In September 2022, Judge Strickroth, to whom the case was then assigned, granted the City’s motion for a preliminary injunction requiring CNLM to operate the Trail at pre-pandemic hours. The minute order granting the City’s motion explained that the reduction in hours was a “development” that required a coastal
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